Montgomery County District Court

Cause No. 2026-CV-0020

Jose Reynolds, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	2-4-26
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence, as required by the Texas Rules of Civil Procedure.

For further answer, and without assuming any burden of proof that the law places on Plaintiff, Defendant asserts the following affirmative defenses.

First, Plaintiff's own negligence caused or contributed to the collision. Plaintiff failed to keep a proper lookout, failed to confirm that the adjacent lane was clear before moving, and failed to yield the right-of-way. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by Plaintiff's percentage of responsibility, and Defendant requests that the trier of fact so apportion responsibility.

Second, Defendant invokes the proportionate responsibility provisions of Chapter 33, including the bar to recovery where Plaintiff's percentage of responsibility exceeds fifty percent.

Third, Defendant asserts that any injuries or damages claimed were caused by a pre-existing condition, a subsequent unrleated event, or Plaintiff's faliure to mitigate damages, and that any recovery must be limited accordingly.